WICKENS CHIRENJE

Versus

MORDELINE MEDIA CHIRENJE (nee NEDZIWE)

HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 1 JUNE AND 26 JUNE 2026

Civil trial

A. Mbeure, for the plaintiff
Defendant, In person

KABASA J*:* The plaintiff issued out summons against the defendant in which he claimed a decree of divorce and sharing of property. The claim, as elaborated in the declaration was that the parties married each other on 20 August 2018 but ceased to live as husband and wife in 2022. They have consequently lost love and affection for each other and are now pursuing divergent interests. Only movable assets were purchased during the subsistence of the marriage and the plaintiff proposed on how these were to be shared.

The defendant resisted the claim. Whilst accepting that the marriage had irretrievably broken down she averred that the plaintiff had not included all the movable property and had left out immovable property. She counter-claimed proposing the sharing of the immovable property and the movable property which included what the plaintiff had left out.

I intend to refer to the parties as plaintiff and defendant notwithstanding the counter-claim. This is so as to avoid confusion as to the identity of the parties.

After the pleadings closed, the parties held their own round table conference to which most of the issues were resolved. The resolution of these issues was subsequently captured at a pre-trial conference held before a judge. The issues referred to trial were captured as:-

> "1. Whether Exodus Chrome Mine Lalapanzi constitutes matrimonial property for distribution in terms of this suit and if it constitutes matrimonial property, whether the defendant ought to be awarded 50% of its value.
>
> 2. Whether the defendant should be awarded a bedroom suite and decoration equipment as her sole and exclusive property."

The defendant was legally represented up to the date of trial. At the commencement of the trial, she preferred to self-act and the legal practitioner subsequently renounced agency.

The plaintiff testified and was the only witness. His evidence was to the effect that the parties married on 20 August 2018. The marriage certificate was produced and marked exhibit 1. In 2021 the defendant indicated that she was no longer interested in the marriage. She left in 2023 without informing him of where she was going. He later learnt that she had left for Australia. Efforts to communicate with her were thwarted as she was not interested. He tried to engage her brother and the church pastor to no avail. Although the defendant eventually opened lines of communication, their communication was no longer as between husband and wife. In January 2024 he gave a divorce token, "gupuro" to her, signifying that he was no longer interested in the marriage relationship. The marriage is dead and there are no prospects of its restoration.

As regards the property to be shared, Exodus Chrome Mine was acquired from ZIMASCO in 2004 and in 2007 he obtained a chrome licence. He was not married to the defendant at that time. The mine was under him and he was working with his first wife who is now deceased. He only invited the defendant to work with him as part of the women he had been asked to work with by government. The defendant kept whatever she obtained monetary wise. Her involvement ended in 2020. The chrome licence expired in 2021 and he sought and obtained an exemption as he wanted to halt mining operations threat. No improvements were effected at the mine.

As for the bedroom suite he bought it using his pension funds and this was after the defendant had left for Australia. The 2 beds they bought together he gave them to the defendant. As for the décor equipment the defendant can have it as he has no interest in it. He however delivered part of the equipment to the defendant's home at her request.

The plaintiff's evidence was supported by documentary evidence. His evidence was clear and easy to follow.

The defendant conceded that the marriage had irretrievably broken down. She also stated that the plaintiff could have the headboard whilst she gets the bedroom suite minus the headboard.

In her evidence it became evident that she was claiming 50% of Exodus Chrome mine but had nothing to show as to what she had contributed towards its acquisition. She did not deny that it was acquired about 10 years before the marriage and that when she was invited to work with the plaintiff as part of the Federation Women he had been asked to work with, she kept whatever she obtained to use as she pleased. Unlike the plaintiff she had nothing to show for her claim regarding the obtaining of the Special Grant. Whilst she had claimed to have been the one who applied for and obtained the chrome licence, she conceded that it was the plaintiff's name which appeared on the application form. She has not been to the mine since her departure for Australia in 2023.

Unlike the plaintiff, the defendant's evidence sought to portray a position not borne out by the tangible evidence as presented by the plaintiff. She sought to suggest that the marriage had not irretrievably broken down but her own evidence was to the contrary. It became apparent that she was bent on denying the obvious and was making unsubstantiated claims. She was a poor witness.

That said, sight must not be lost of the fact that this is a matrimonial matter. Divorce is not granted for the asking. The court grants a decree of divorce where it has been proved that the marriage has irretrievably broken down.

Section 5 of the Matrimonial Causes Act [Chapter 5:13] provides that:-

> "5(1) An appropriate court may grant a decree of divorce on the grounds of irretrievable break-down of the marriage if it is satisfied that the marriage relationship between the parties has broken down to such an extent that there is no reasonable prospects of the restoration of a normal marriage relationship between them."

In casu, the parties have not lived together as husband and wife for a continuous period of 2 years. The defendant has made allegations of adultery against the plaintiff. She claims that the plaintiff is now staying with a deaconess from their church and had denied her access into their home upon her return from Australia.

If this is not evidence of a marriage that has broken down and irretrievably so then I do not know what is.

There is therefore no doubt that the marriage has irretrievably broken down and the defendant eventually accepted it.

As regards the division of assets, section 7 of the Act provides that:-

"7(1) Subject to this section, in granting a decree of divorce …. an appropriate court may make an order with regard to –

(a) The division, apportionment or distribution of the assets of the spouses" (my emphasis)

In *Moroney* v *Moroney* S 24-13 the court quoted with approval, the remarks made in *Gonye* v *Gonye* 2009 (1) ZLR 232 (S) The term used are

> "The term used are… the assets of the spouses and not 'matrimonial property.' It is important to bear in mind the concept used, because the adoption of the concept 'matrimonial property' often leads to the erroneous view that assets acquired by one spouse before marriage or when the parties are separated should be excluded from the division, apportionment or distribution exercise. The concept 'the assets of the spouses' is clearly intended to have assets owned by the spouses individually (his or hers) or jointly "theirs" at the time of the dissolution of the marriage by the court considered when an order is made with regard to the division, apportionment or distribution of such assets." (See *Rangana* v *Rangana* HH 234-18)

However such distribution shall not extend to any assets which are proved, to the satisfaction of the court, to have been acquired by a spouse whether before or during the marriage –

(a) by way of an inheritance: or
(b) in terms of any custom and which, in accordance with such custom, are intended to be held by the spouse personally."

The parties agreed that the immovable property which had been included by the defendant in her counter-claim was not property which formed part of the 'property of the spouses' and liable for distribution. I do not intend to detain myself over this property.

I propose to consider the movable property which formed the second issue referred for trial. This is the bedroom suite and décor equipment. The parties agreed that the décor equipment should be awarded to the defendant. As for the bedroom suite, the plaintiff persisted in his claim for the headboard and the defendant agreed to let him have the headboard, whilst she gets the rest of the bedroom suite.

It follows therefore that the sharing of the movable property was resolved by the parties themselves.

This left the Exodus Chrome Mine, Lalapanzi.

The undisputed evidence was that this mine was acquired in 2004 and a licence for it obtained in 2007. The plaintiff was at the time married to his first wife who subsequently died before his marriage to the defendant in 2018.

The defendant did not contribute materially to the operations at the mine but was able to keep whatever it is she obtained therefrom after she was invited, as part of a conglomerate of women, to participate in mining operations.

I must point out that the use of "matrimonial property" to describe Exodus Chrome Mine is a misnomer as articulated in the *Gonye* v *Gonye* case (supra). Given the reasoning in *Moroney* v *Moroney* (supra) and *Gonye* v *Gonye* (supra), Exodus Mine forms part of the "assets of the spouses."

The issue is whether the defendant is entitled to a 50% share in the mine.

In *Rangana* v *Rangana* HH 234-18, the marriage lasted about three months. The court emphasized that while assets acquired before marriage may be considered, the short duration of the marriage meant that direct contributions were important. (See also *Masiwa* v *Masiwa* 2007 (1) ZLR 167 (S)).

The court is enjoined to "… as far as it is possible, place the parties in the position they would have been in had the marriage subsisted. (See *Usayi* v *Usayi* 2003 (1) ZLR 684 (S).

I have already alluded to the fact that the defendant was not a credible witness. I got the distinct impression that she was exaggerating what her contribution was to the acquisition of Exodus Chrome Mine. The licence she claims is proof of her ownership of the mine is not in her name. The application for such licence was made by the plaintiff. There was nothing to controvert the plaintiff's evidence that as the sitting tenant, when the ZIMASCO claims were ceded to the government, sitting tenants obtained rights to the mine. He obtained them by virtue of being a sitting tenant.

The defendant's claim that she got the mine in her own right as part of the Federation of Women and she 'incorporated' the plaintiff as her husband was proved to be false. There is nothing which spoke to that assertion except her word which was at variance with the documentary evidence. Where a litigant misrepresents facts in order to mislead the court, the court can only wonder as to why such a litigant would deem it fit to be less than truthful. It only lends credence to the plaintiff's testimony. Why seek to give the impression that you did more than what you actually did. Is it because the defendant is aware that for the brief period she worked at the mine she used whatever she got for her own purposes? With no contribution made with regards to improvements why would the defendant claim a 50% share? No mining

equipment was bought for use at this mine. The plaintiff's uncontroverted evidence was that whatever equipment that was used was hired for that purpose. Is it therefore equitable to award a 50% share in the mine to the defendant? I think not. I am of the considered view that she benefited from the proceeds she got when she was invited to participate in mining operations as she utilized such for her own purposes.

The parties got married in 2018 and barely 4 years later the defendant left for Australia. She has no idea as to what is happening at Exodus Mine and has had no connection to it since her departure. The 3 years the parties effectively stayed together does not justify the defendant's claim to Exodus Mine. She made reference to some documentary evidence which she said she submitted to her erstwhile legal practitioner. If such documents were there they would have been discovered and she could have referred to them as they would have formed part of the record. These were not there because they are non-existent.

I have already alluded to the fact that the parties had agreed on the sharing of most of the property, except that which they agreed was either inherited or was not the spouses' property. I need not refer to that property which the party excluded. I therefore intend to include the property whose apportionment was agreed upon and that which I had to deal with as per the issues referred to trial.

With that said, I make the following order: -

1. A decree of divorce be and is hereby granted.
2. The plaintiff be and is hereby awarded the following as his exclusive property:
   MOVABLE PROPERTY
   a) 2 beds
   b) Hammer mill
   c) 1 x television set
   d) Nissan Hardbody
   e) Headboard

IMMOVABLE PROPERTY

   f) Exodus Chrome Mine Lalapanzi

3. The defendant be and is hereby awarded the following as her exclusive property:-

1. Compressor

2. 2 beds (matrimonial and guest bedroom bed)

3. Bedroom suite minus the headboard

4. 34-inch Sony television

5. 1 x gas stove

6. 1 x defy deep freezer

7. Décor equipment

8. The leaching tanks at Essay 6 Mine shall be evaluated within 1 month of this order and the defendant is awarded 50% of that value. The 50% shall be paid within 2 months of such evaluation.

9. The gazebo, kitchen, fowl run and cottage at Essay 6 Mine shall be evaluated within 14 days of this order.

The parties shall agree on the estate agent who shall evaluate the property, failing which the Registrar shall appoint an estate agent from the list of estate agents to do the evaluation. This shall be done within a further 14 days after the aforestated first 14 days.

The plaintiff shall pay the evaluated amount to the defendant within 1 month of such evaluation.

4. Each party shall bear its own costs.

Katenaire-Mbeure Law Chambers, plaintiff's legal practitioners